Medical Ethics

Forensic Medicine | 3rd Year MBBS

Hi Sammy!
Ethics = easy marks!
Just know the Acts
and landmark cases!

Medical Ethics | Forensic Medicine | 3rd Year | MBBS

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NMC replaced MCI in 2020! Know both for exams and practice!

Indian Medical Council (Professional Conduct) Regulations 2002

Duties to patients:	Devotion, skill, care; no discrimination; maintain records 3yrs
Duties to profession:	No self-advertising; no rebates/commission; no dichotomy
Duties to colleagues:	No poaching patients; fair referrals; mutual respect
Medical records:	Must maintain for minimum 3 years
Prescription:	Must be in generic names (NMC guideline)
Fees:	Display fee schedule; no overcharging; receipts mandatory

National Medical Commission (NMC) Act 2019

Feature	Detail
Replaced	MCI (Medical Council of India) — dissolved in 2020
4 Autonomous Boards	UGMEB, PGMEB, MARB, EMRB
NEXT exam	National Exit Test (replaces NEET-PG + licensing)
Community Health Provider	Mid-level practitioner for rural areas (controversial)
Fee regulation	50% seats in private colleges under NMC fee cap

Patient Rights (Charter of Patient Rights 2018)

Right	Explanation
Right to information	Diagnosis, treatment options, prognosis in own language
Right to records	Access to medical records and reports
Right to confidentiality	Medical information kept private (exceptions exist)
Right to informed consent	Explained risks, benefits, alternatives before procedure
Right to second opinion	Can seek opinion from another doctor
Right to refuse treatment	Can refuse any procedure (competent adult)
Right to non-discrimination	No denial based on caste, religion, gender, HIV status
Right to safety	Safe environment, infection control, quality care

Aruna Shanbaug case and THOA 1994 are super high yield!

Euthanasia — Types + Indian Law

Type	Details
Active	Deliberate act to end life (lethal injection) — ILLEGAL in India
Passive	Withdrawal of life support — LEGAL (Common Cause v Union of India 2018)
Voluntary	Patient's own request — allowed via Advance Directive (Living Will)
Involuntary	Without patient's consent — ALWAYS illegal
Physician-assisted	Doctor provides means, patient self-administers — illegal in India

Landmark Cases:

Aruna Shanbaug v Union of India (2011) — SC allowed passive euthanasia

Common Cause v Union of India (2018) — SC legalized Advance Directives (Living Will)

Transplantation of Human Organs Act (THOA) 1994

Provision	Detail
Brain death criteria	Absent brainstem reflexes, apnea test, flat EEG (2 times at 6hr gap)
Brain death committee	4 doctors: RMP in-charge, surgeon, neurologist, nominee of govt
Living donor	Near relative (spouse, parent, sibling, child) — no authorization needed
Non-related donor	Needs Authorization Committee approval (prevents organ trade)
Organ sale	Strictly prohibited; 5yr jail + Rs 20 lakh fine
Amended	2011, 2014 — included tissue transplant, swap donor, more regulations

★ Brain Death = Legal Death!

Brain death (NOT cardiac death) is the criterion for organ donation in India.

4 doctors certify, 2 tests 6 hours apart. Brainstem death = irreversible.

Helsinki Declaration + professional misconduct = viva favorites!

Ethics in Clinical Trials

Guideline/Document	Key Points
Nuremberg Code (1947)	First code; 10 points; voluntary consent essential
Declaration of Helsinki (1964)	WMA; patient welfare > science; ethics committee needed
Belmont Report (1979)	Respect, Beneficence, Justice — 3 ethical principles
ICMR Guidelines (2017)	Indian guidelines; 12 general principles; SAE reporting
GCP (ICH-GCP)	International standard; IRB/IEC approval mandatory
Informed consent in trials	Written, voluntary, can withdraw anytime, no coercion

Professional Misconduct (MCI/NMC)

IS Misconduct

- Adultery with patient
- Performing criminal abortion
- Issuing false medical certificates
- Fee splitting / dichotomy
- Self-advertising / canvassing
- Covering for unqualified person
- Refusing emergency treatment

NOT Misconduct

- Treating own family members
- Not attending to a chronic patient
- Honest error of judgment
- Accepting token gifts (within limits)
- Charging reasonable fees
- Giving opinion in good faith
- Refusing non-emergency case

Doctor-Patient Privilege (Confidentiality)

General Rule: Doctor must maintain confidentiality of patient info.

Exceptions (when disclosure is allowed/mandatory):

- Court order / legal proceedings (subpoena)
- Notifiable diseases (cholera, plague, HIV disclosure to spouse)
- Gunshot/stab wounds — inform police (mandatory)

Ethics = your moral compass as a doctor! You've GOT this Sammy!

Most Repeated LAQs (10–12 marks)

- 1. Discuss euthanasia — types, Indian law, and landmark judgments
- 2. Write about THOA 1994 — brain death criteria & organ donation rules
- 3. Enumerate types of professional misconduct under MCI/NMC regulations
- 4. Discuss informed consent — types, exceptions, and medicolegal aspects
- 5. Write about ethics in clinical trials — Helsinki, Nuremberg, ICMR

Most Repeated SAQs (5–6 marks)

- 1. Advance Directive (Living Will) — what, who, how
- 2. Brain death criteria under THOA
- 3. Doctor-patient privilege and exceptions
- 4. NMC Act 2019 — key features
- 5. Nuremberg Code — 10 points (brief)
- 6. Professional misconduct — 5 examples

One-Liner Associations (MCQ/Viva Gold)

Question	Answer
Passive euthanasia legalized by	Common Cause v UoI (2018)
First euthanasia case in India	Aruna Shanbaug (2011)
Brain death committee size	4 doctors
Brain death tests interval	6 hours apart (2 tests)
Organ sale penalty	5 years + Rs 20 lakh fine
First ethics code	Nuremberg Code (1947)
Helsinki Declaration year	1964 (WMA)
MCI replaced by	NMC (2020)
Medical records retention	Minimum 3 years
Sec 309 IPC (suicide attempt)	Decriminalized by MHCA 2017

♥ **Ethics isn't just for exams — it's who you'll be as a doctor, Sammy!**
Your patients will trust you because you care about doing what's right!